

Court No. - 74

Case :- WRIT - C No. - 20195 of 2023

Petitioner :- Shaheen Sheikh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mohd. Asif

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Ashwani Kumar Mishra, J.

Hon'ble Ashutosh Srivastava, J.

Petitioner is permitted to implead owner of the premises in question as respondent no.4 in the array of parties to the writ petition.

Petitioner claims to be in occupation of premises being House No.B-1668, G.T.B. Nagar, Kareli, District Prayagraj where his grandfather came in possession pursuant to some agreement dated 08.01.1997. The petitioner claims that she was depositing house tax, water tax and electricity bill since long. A dispute apparently came into existence between petitioner's father and recorded owner/landlord in respect whereof an Original Suit No.902 of 2016 has been filed for injunction. Interim injunction apparently has been granted to petitioner in respect of the premises which is continuing.

It appears that during pendency of the suit in which injunction is granted by the competent court the electricity supply of petitioner has been disconnected on the request of landlord on 09.05.2023.

Learned counsel for the petitioner submits that in the extreme summer condition it is difficult to live in the premises alongwith her children in the absence of electricity. The petitioner has again applied for restoration/fresh electricity connection on 26.05.2023 but such connection is not being granted to the petitioner relying upon clause 4.4(vi) of the Electricity Supply Code, 2005, which requires consent of the landlord for installation of fresh electricity connection in favour of tenant.

Learned counsel for the petitioner states that electricity connection was already in existence since long and, therefore, clause 4.4(vi) of the Code would have no applicability in the facts of the present case.

Matter requires consideration.

Notice on behalf of respondent no.1 has been accepted by learned Standing Counsel, whereas Sri Narendra Tiwari, Advocate has appeared for respondent nos.2 and 3.

Issue notice to respondent no.4. Steps be taken within two weeks by registered speed post.

All the respondents may file counter affidavit within six weeks. Rejoinder affidavit may also be filed within two weeks, thereafter.

List thereafter.

An ad interim mandamus is issued to the respondents to forthwith restore the electricity connection of the petitioner. Charges payable by the petitioner shall be intimated to her within a week from today and the same shall be deposited by her within two weeks, thereafter. The petitioner shall also continue to pay monthly charges of electricity against bills raised by the Corporation.

Order Date :- 14.6.2023

Ashok Kr.

Court No. - 46

Case :- WRIT - C No. - 20195 of 2023

Petitioner :- Shaheen Sheikh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mohd. Asif

Counsel for Respondent :- C.S.C.,Narendra Kumar
Tiwari,Prashant Kumar Tripathi

Hon'ble Ashwani Kumar Mishra,J.

Hon'ble Ashutosh Srivastava,J.

Ref: Civil Misc. Delay Condonation Application No. 2 of 2023

Cause shown for the delay in filing the recall application no.3 is to the satisfaction of the Court. Delay in filing the recall application is condoned.

Delay condonation application is, accordingly, allowed.

Ref: Civil Misc. Recall Application No. 3 of 2023

This application has been filed by the fourth respondent seeking recall of our order dated 14.6.2023, whereby the electricity connection of petitioner was directed to be restored on payment of usual charges.

According to applicant-respondent, petitioner's grandfather was the tenant who has since died and that the status of petitioner is at best that of a trespasser.

Be that as it may, we are not required to determine the status of the petitioner viz-a-viz her occupation in the premises itself. All such issues can be determined in pending civil proceedings of Original Suit No. 902 of 2016.

We clarify that while passing the order dated 14.6.2023, we have neither adjudicated the right of the petitioner over the property, nor our order is intended to influence the civil proceedings pending before the competent forum. The direction of this Court was issued only in view of the fact that petitioner was in possession. This statement otherwise is not disputed.

Leaving all issues open for adjudication in appropriate proceedings this application filed for recall of the order dated 14.6.2023 is consigned to records.

Order Date :- 22.9.2023

Ranjeet Sahu